

Court No. - 29

Case :- WRIT - C No. - 26664 of 2025

Petitioner :- Sanjay Chaurasiya

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Harendra Prakash Dwivedi

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Praveen Kumar Giri,J.

1. Heard Shri Harendra Prakash Dwivedi, learned counsel for the petitioner, Mrs. Shubhra Singh, learned Additional Chief Standing Counsel for the State respondent and Shri N.K. Tiwari, learned counsel for respondent No.2.

2. The instant writ petition is preferred inter-alia with the following reliefs:-

"Issue a writ, order or direction in the nature of CERTIORARI to quash the impugned order dated 16/07/2025 passed by the Respondent No. 2 (Annexure No. 8 to this writ Petition) by which Respondent No.2 has rejected the claim of the petitioner to install the Temporary Electricity Connection in the shop of the petitioner, which has been arbitrarily this connected by the owner of the house namely Dinesh Kumar Dubey Respondent No.3 after deciding the 6-C application in favour of the petitioner dated 19/11/2024 in suit No. 371 of 2024 (Chaurasiya Paneer Kendra through proprietor Sanjay Kumar Chaurasiya Vs. Dinesh Kumar Dubey).

(II) Issue a writ, order or direction in the nature of mandamus directing to the respondent No.2 to install the Temporary Electricity Connection in the shop of the petitioner situated at House No. E-26 Shantipuram, Phaphamau, Prayagraj."

3. Learned counsel for the petitioner states that he had opened a shop in the house of respondent No.3 in the year 2008, after paying Rs. 1,50,000/- as deposit money and Rs. 1600/- as monthly rent of the shop. He submits that the petitioner continues to run his business and has regularly paid the monthly rent to respondent No.

3, along with a 10% annual increment. Now, he is paying Rs. 7000/- per month as rent. The registration of the shop of the petitioner has been done by the Department of the Government Food Security and Medicine and a registration number for the dairy unit was also accorded to the shop.

4. Learned counsel for the petitioner further submits that when respondent No. 3, the landlord, tried to interfere in the peaceful running of the business, the petitioner instituted an injunction suit which was registered as Suit No. 371 of 2024 (Chaurasiya Paneer Kendra through proprietor Sanjay Kumar Chaurasiya Vs. Dinesh Kumar Dubey) and the competent court below, learned Civil Judge, Junior Division, East Prayagraj has also decided the 6C application of the petitioner in favour of the petitioner and granted an injunction against the landlord, ordering him not to disturb the peaceful working of the petitioner in the shop in question.

5. Learned counsel for the petitioner, in this backdrop, placed reliance upon the order passed by the Division Bench of this Court on 11.02.2025 in ***Writ-C No. 226 of 2025 (Guddi Kesarwani vs. State of U.P. and 3 others)***. He submits that the rights of tenants are well-protected under the Electricity Supply Code, 2005. He further submits that in light of the aforesaid judgment, an interim relief should be accorded in favour of the petitioner in the instant writ petition.

6. At the very outset, Shri N.K. Tiwari, learned counsel for the respondent No.2 raised a preliminary objection qua the maintainability of the instant petition by submitting that petitioner is having efficacious remedy to press the application under Section 7.10 of the Electricity Supply Code, 2005 for ventilation of his grievance.

7. Considering the factual situation, we find that the instant matter is squarely covered with the mandate of the Division Bench in ***Guddi Kesarwani*** (supra), in addition to this, injunction is also subsisting in favour of the petitioner. Accordingly, the order dated 16.07.2025 passed by the Respondent No. 2 i.e. Executive Engineer, City Electricity Distribution Khand, Tagour Town, Prayagraj is set aside and the matter is remitted back to the authority concerned with an observation that in case, the petitioner applies for a commercial connection, the same would be processed in accordance with law.

8. With the aforesaid direction, the writ petition stands **disposed of.**

Order Date :- 18.8.2025

K.Tiwari